

CHAUFX INC. PRIVACY POLICY

Effective Date: July 1, 2026

1. Introduction

Your privacy is important to us. This Privacy Policy explains how ChaufX Inc. (“**ChaufX**,” “we,” “us,” or “our”) collects, uses, discloses, and protects personal information in connection with the website located at www.chaufX.ca (the “**Website**”), the ChaufX customer-facing mobile application (the “**Customer App**”), the ChaufX driver-facing mobile application (the “**Driver App**”), and all related products, features, and services (collectively, the “**Services**”).

This Privacy Policy is designed to comply with the *Personal Information Protection and Electronic Documents Act* (PIPEDA) and applicable Canadian provincial privacy legislation, including An Act respecting the protection of personal information in the private sector (Quebec, as amended by Law 25), the Personal Information Protection Act (British Columbia), and the Personal Information Protection Act (Alberta).

By using the Services, you consent to the collection, use, and disclosure of your personal information as described in this Privacy Policy. The Services may be transitioned to a successor corporation on or about the date of incorporation, and this Privacy Policy will continue to apply to your personal information following any such transition.

2. Definitions

“**Customer**” means an individual who creates a customer Account and uses the Services to book driving or related assistance services.

“**Driver**” means an independent contractor engaged through the Services to provide driving and related assistance services to Customers.

“**Personal Information**” means information about an identifiable individual, including name, contact details, device identifiers, Booking and geolocation data, payment information, identification documents, driving abstract, criminal record check results, and photographs.

“**Sensitive Information**” means Personal Information that is given a higher level of protection under applicable law, including financial account information, government-issued identification, Social Insurance Number (SIN), criminal record information, health or mobility information disclosed during senior assistance, and precise geolocation.

“**Consent**” means voluntary agreement to the collection, use, and disclosure of Personal Information for the identified purposes.

3. Information We Collect

3.1 Information you provide (Customers)

- Account information: name, email address, phone number, and date of birth.
- Vehicle information: make, model, year, licence plate, registration, and insurance policy details.
- Booking information: pickup and drop-off locations, date and time, service type, passenger count, special instructions, and senior-assistance details if applicable.
- Payment information: credit card or debit card details processed by our third-party payment processor (we do not store full payment card numbers on our systems).
- Communications: messages exchanged with ChauffX customer support and with Drivers through the in-app messaging feature.
- User Content: reviews, ratings, and photographs submitted through the Services.

3.2 Information you provide (Drivers)

- Identification: name, date of birth, mailing address, phone number, email address, and government-issued photo identification.
- Driving credentials: driver's licence (front and back), driving abstract (from the provincial Ministry of Transportation), driving history, and vehicle insurance declaration page.
- Background check information: criminal record check results, Vulnerable Sector Check results (where applicable), identity verification results, and right-to-work documentation.
- Tax and payment information: banking or payment processor details for payout, Social Insurance Number (collected only for driving abstract and identity verification purposes), and HST/GST registration number (if applicable).
- Photograph: a headshot used for Customer identification in the Customer App.
- Performance data: Bookings completed, ratings received, cancellations, incidents, and other Platform performance metrics.

3.3 Information collected automatically

- Device information (device type, operating system, unique device identifiers, browser type).
- Usage data (features accessed, session duration, date and time of use, referral source).
- IP address and approximate location inferred from IP.
- Log data, crash reports, and analytics information.

3.4 Geolocation

Precise geolocation. The Services collect precise geolocation from the Customer App during a Booking (to confirm pickup, track the trip, and enable safety features) and from the Driver App while the Driver is on-duty (to match the Driver with nearby Customers and to log the route of each Booking). Precise geolocation is Sensitive Information. We collect precise geolocation only when the app is active and when you have granted the corresponding device permission. You may disable geolocation at any time through your device settings; disabling geolocation will limit or disable Booking functionality.

Approximate geolocation. We may also collect approximate geolocation (derived from IP address) when you interact with the Website or the Services in a logged-out state, for analytics, fraud prevention, and service availability purposes.

3.5 Device permissions

The Customer App and Driver App request access to certain features on your device. You may manage these permissions through your device settings. Disabling a permission may limit or disable the corresponding feature. The principal device permissions we request are:

- Location (to support Booking pickup, route, and safety).
- Camera (to upload photographs of a Vehicle, a Driver's headshot, identification documents, or incident evidence).
- Photos/media library (to upload User Content or incident evidence).
- Push notifications (to deliver Booking confirmations, status updates, and incident notifications).
- Contacts (only where you choose to invite a contact or designate an Authorized User, where applicable).
- Microphone (only where you use in-app voice messaging, where applicable).

3.6 Payment information

Payment information for Customers is collected and processed by our third-party payment processor under the processor's own terms and privacy policy. We do not store full credit card or bank account numbers on our systems. Driver payout information is collected for the purpose of remitting Fees to Drivers and is handled in accordance with applicable law.

3.7 Background check results

For Drivers, we collect criminal record check results (RCMP / CPIC), Vulnerable Sector Check results (where required by applicable law or the nature of the services), provincial driving abstract results (obtained through the applicable provincial Ministry of Transportation), identity verification results, and right-to-work documentation. These checks are conducted through our designated third-party background check and identity verification provider, whose identity is disclosed to each Driver in the separate Background Check Consent and Authorization (the "**Background Check Consent**") executed at the time of onboarding. The collection, use, and disclosure of this information is subject to the Background Check Consent, which: (a) is presented as a separate, clearly labelled document and is not incorporated into the general Terms and Conditions by cross-reference alone; (b) identifies each specific check to be performed and the screening provider(s) responsible for conducting it; (c) states the applicable retention period for each category of check result; (d) confirms the Driver's right to access and request correction of their background check information; and (e) includes a standing consent authorizing periodic re-screening for the duration of the Driver's engagement, the scope and frequency of which is disclosed in the Background Check Consent. Where a Driver withdraws consent to a required background check, ChauffX may suspend or terminate the Driver's access to the Services.

4. Purposes for Collecting Personal Information

We identify our purposes for collecting Personal Information at or before the time of collection. We collect, use, and disclose Personal Information for the following purposes:

- to provide, operate, and maintain the Services;
- to create and manage Accounts (Customer and Driver);

- to match Customers with available Drivers, confirm Bookings, and execute the pre-trip and post-trip Vehicle condition check;
- to process payments, Driver payouts, and applicable taxes;
- to conduct background checks, identity verification, and driving abstract checks for Drivers, and to assess Driver suitability;
- to communicate with you, including sending transactional messages (booking confirmations, receipts, incident notifications, system messages) and, with your express consent, marketing messages;
- to respond to incidents, accidents, and safety concerns, and to cooperate with insurers, police, and other authorities where required;
- to enforce these Terms, the Driver Agreement, and applicable law, including investigating fraud, abuse, and off-platform solicitation;
- for analytics, service improvement, and business development;
- for security, fraud prevention, and abuse detection;
- for internal record-keeping and administrative purposes; and
- to comply with legal and regulatory obligations, including the *Digital Platform Workers' Rights Act*, 2022 (Ontario) disclosure obligations for Drivers.

5. Consent

We obtain your consent before or at the time of collecting your Personal Information. Consent may be given expressly (for example, by creating an Account, submitting information through the Services, or signing a background check consent) or implied by your use of the Services where the purpose of collection would be considered obvious to a reasonable person.

We obtain express consent before collecting, using, or disclosing Sensitive Information (including criminal record check results, SIN, precise geolocation, and payment information) and before sending you marketing communications under Canada's *Anti-Spam Legislation* (CASL). You may withdraw your consent at any time, subject to legal or contractual restrictions, by contacting our Privacy Officer as set out in Section 18. Please note that withdrawing consent may affect your ability to use some or all of the Services.

6. Limiting Collection

We limit the collection of Personal Information to what is necessary for the purposes identified in Section 4. We collect Personal Information by fair and lawful means.

7. Use, Disclosure, and Retention

7.1 Use

We use your Personal Information only for the purposes identified in Section 4, or for purposes that a reasonable person would consider appropriate in the circumstances.

7.2 Disclosure between Customers and Drivers

When a Booking is matched, we disclose limited Personal Information between the Customer and the assigned Driver to enable the Booking. Customers see the Driver's first name, photograph, rating, and approximate location during the Booking. Drivers see the Customer's first name, pickup and drop-off locations, and any special instructions relevant to the Booking. We do not disclose precise home addresses, telephone numbers (other than through anonymized in-app messaging), or payment information between Customers and Drivers.

7.3 Service providers

We disclose Personal Information to third-party service providers who assist us in delivering the Services, including: cloud hosting providers, payment processors, background check providers, identity verification providers, mapping and geolocation providers, SMS and email delivery providers, push notification services, analytics providers, and customer support platforms. We require our service providers to protect Personal Information with safeguards appropriate to the sensitivity of the information and to use it only for the purposes for which it was disclosed.

7.4 Other disclosures

We may also disclose Personal Information to:

- our employees, contractors, and professional advisors (including legal counsel, accountants, and insurers), subject to confidentiality obligations;
- business partners and potential acquirers in connection with a merger, acquisition, financing, or sale of all or substantially all of our assets;
- courts, tribunals, regulatory authorities, and law enforcement, as required or permitted by law;
- insurers of Customers, Drivers, or ChauffX, and their adjusters, investigators, or counsel, in connection with an incident arising from a Booking; and
- any other party where you have provided your consent.

7.5 Retention

We retain your Personal Information only for as long as necessary to fulfil the purposes for which it was collected or as required by law. When Personal Information is no longer required, we will securely delete or anonymize it.

Indicative retention periods:

- Account information: for the duration of the Account, plus up to seven (7) years thereafter for tax, accounting, and legal record-keeping purposes.
- Booking records: up to seven (7) years following the Booking for tax, accounting, insurance, and legal purposes.
- Driver background check results: for the duration of the Driver's engagement, plus up to two (2) years thereafter, subject to any longer period required by the background check provider or applicable law.
- Social Insurance Number (Drivers only): retained only for as long as necessary to complete identity verification and driving abstract checks, and securely deleted thereafter.

- Precise geolocation logs: up to three (3) years following the Booking for incident investigation and dispute resolution.
- Communications with customer support: up to three (3) years from the date of the communication.

8. Safeguards

We protect Personal Information with security safeguards appropriate to the sensitivity of the information. These safeguards include:

- encryption of data in transit (TLS) and at rest;
- secure cloud storage through reputable cloud providers;
- access controls limiting employee, contractor, and service provider access to Personal Information on a need-to-know basis;
- multi-factor authentication for administrative access to the Services;
- contractual safeguards with service providers;
- regular security assessments and monitoring; and
- a documented breach response protocol.

No method of electronic transmission or storage is completely secure, and while we use commercially reasonable measures, we cannot guarantee absolute security.

9. International Transfers

Your Personal Information may be stored and processed in Canada, the United States, or other jurisdictions where we or our service providers maintain facilities. These jurisdictions may have data protection laws that differ from those in your jurisdiction of residence. Where we transfer Personal Information outside of Canada, we take steps to ensure that the information is protected in accordance with this Privacy Policy and applicable law. You may contact our Privacy Officer to obtain information about the jurisdictions to which your Personal Information may be transferred.

10. Accuracy, Access, Correction, and Portability

Accuracy. We take reasonable steps to ensure that Personal Information in our possession is accurate, complete, and up to date for the purposes for which it is used. You are responsible for informing us of any changes to your Personal Information.

Access. You have the right to request access to the Personal Information we hold about you. Upon receiving a written request and verifying your identity, we will provide you with your Personal Information, subject to any applicable legal exceptions.

Correction. If you believe that any Personal Information we hold about you is inaccurate, incomplete, or out of date, you may request that we correct it. We will take reasonable steps to correct any information found to be inaccurate or incomplete.

Deletion. You may request deletion of your Account and associated Personal Information at any time, subject to legal retention obligations and the completion of any ongoing Booking or dispute.

Portability. Where applicable law requires, you have the right to receive the Personal Information you have provided to us in a structured, commonly used, and machine-readable format, or to have it transmitted directly to another organization.

11. Cookies and Similar Technologies

We use cookies and similar technologies on the Website to recognize your device, provide core features of the Services, track usage and performance, personalize your experience, and support analytics. Cookie data is transmitted between your device and our servers in a secure environment. You may manage your cookie preferences through your browser settings. Disabling cookies may limit the functionality of the Website.

12. Children's Privacy

The Services are not directed at children and are intended for users who are at least eighteen (18) years of age (or the age of majority in their jurisdiction). We do not knowingly collect Personal Information from children. If we become aware that we have inadvertently collected Personal Information from a child, we will take steps to delete that information promptly.

13. Breach Notification

In the event of a breach of security safeguards involving Personal Information that creates a real risk of significant harm to affected individuals, we will:

- notify the Office of the Privacy Commissioner of Canada as required under PIPEDA;
- notify the Commission d'accès à l'information du Québec and applicable provincial regulators where required;
- notify affected individuals as soon as feasible; and
- maintain records of all breaches of security safeguards in accordance with applicable law, regardless of whether they meet the threshold for notification.

14. Quebec (Law 25) Disclosures

If you reside in Quebec, the following additional information applies under An Act respecting the protection of personal information in the private sector (as amended by Law 25):

- Our designated Person in Charge of the Protection of Personal Information is Maxwell A. Enumah, whose contact information is set out in Section 18.
- Before introducing any new technology project that involves Personal Information, we conduct a privacy impact assessment where required by Law 25.
- You may request the de-indexing of a link to Personal Information where the conditions of Law 25 are met.

- You may file a complaint regarding our handling of your Personal Information with the Commission d'accès à l'information du Québec.

15. Business Transfers

In the event that ChauffX or substantially all of its assets are acquired, sold, assigned to a successor corporation on incorporation, or subject to a merger, financing, insolvency, or bankruptcy, Personal Information may be among the assets transferred. Any acquiring or assignee party will be required to comply with this Privacy Policy (or a successor privacy policy that is no less protective) with respect to your Personal Information.

16. Changes to This Privacy Policy

We may update this Privacy Policy from time to time to reflect changes to our practices, technology, legal requirements, or other factors. If we make material changes, we will notify you by posting the updated Privacy Policy on the Website, through the Services, or by email to the address associated with your Account. Your continued use of the Services following the posting of changes constitutes your acceptance of the revised Privacy Policy.

17. Authorized Users and Account Sharing

Where you add an Authorized User to your Account, you represent and warrant that you have the authority to do so and, where required, the Authorized User's consent to the collection, use, and disclosure of their Personal Information as described in this Privacy Policy. We rely on you to inform each Authorized User that their Personal Information will be stored in the Services, and to direct any Authorized User who has questions or privacy requests to our Privacy Officer.

18. Complaints and Contact

If you believe that we have not handled your Personal Information in accordance with this Privacy Policy or applicable law, you may file a complaint with our Privacy Officer using the contact information below. We will investigate your complaint and respond in writing within a reasonable time.

You also have the right to file a complaint with the Office of the Privacy Commissioner of Canada and, if you reside in Quebec, British Columbia, or Alberta, with the applicable provincial privacy regulator.

ChauffX Privacy Officer:

Maxwell A. Enumah, Privacy Officer

ChauffX Inc. 2 simcoe street south, suite 300, oshawa, ontario L1H8C1.

Email: privacysupport@chauffX.ca

Phone: +1 (647) 919-7237

Office of the Privacy Commissioner of Canada

30 Victoria Street, Gatineau, Quebec K1A 1H3

Toll-free: 1-800-282-1376

Website: www.priv.gc.ca

Commission d'accès à l'information du Québec

Website: www.cai.gouv.qc.ca

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